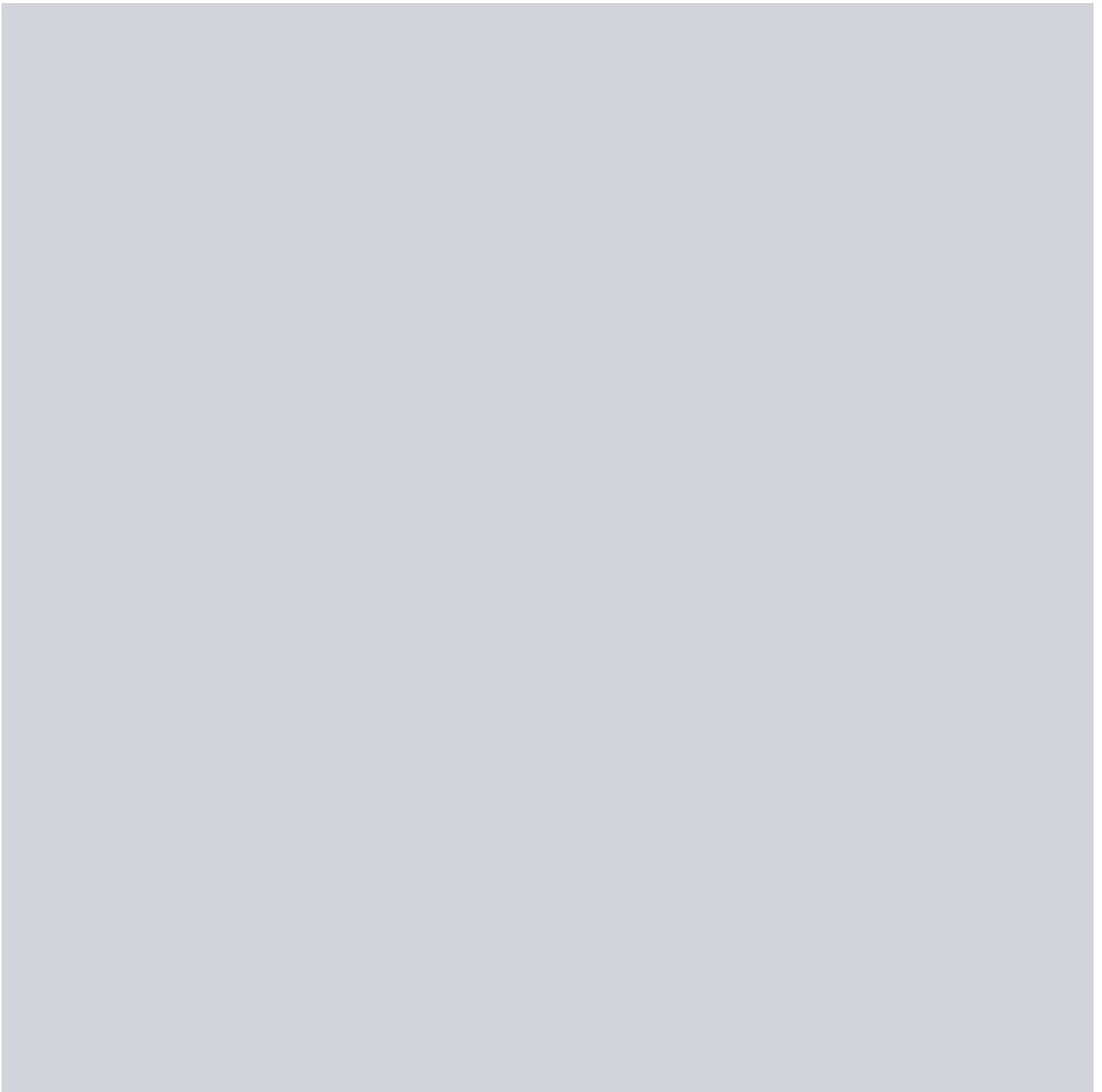




CALIFORNIA

LAPD renegotiating deal with Flock Safety to access company's license plate readers





By Libor Jany

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- The LAPD said last week it had halted its relationship with Flock Safety over concerns about how the company stores data collected from automated license plate readers.
- Police officials said Tuesday they are in the process of negotiating a new deal with Flock that includes more safeguards.
- The LAPD said 138 pole-mounted Flock cameras are still operating in the city, but the department no longer has regular access to the data that is being gathered.

Less than a week after the Los Angeles Police Department announced it had halted its relationship with Flock Safety over concerns about how the company shares data collected from automated license plate readers around the city, police officials said they are working out a new agreement — this time with more protections in place.

Flock has been criticized for sharing its data with state and federal law enforcement agencies, which detractors say helps fuel the Trump administration's immigration crackdown by giving authorities the ability to track the movements of undocumented immigrants.

The Atlanta-based firm is one of three vendors used by the city for automated license plate readers. The devices scan the plates of passing vehicles, which police say enables them to locate vehicles reported stolen or linked to criminal suspects.

Flock operates 138 pole-mounted cameras on city property, along with potentially hundreds more that are privately owned. Cmdr. Randy Goddard, who runs the LAPD's information

technology bureau, told the Police Commission on Tuesday that department employees no longer had regular access to data that are collected by the company, but that information is being stored in the cloud and could be obtained by LAPD investigators in the future if a new contract is finalized.

Goddard said the department let its previous operating agreement with Flock lapse last week because of lingering questions over who owns the data collected by the company's plate readers and who has access to it.

Under the language in the department's proposed new contract with Flock, the LAPD would retain ownership of "every image, every record, all metadata" from data captured on the cameras. Goddard said Flock would not be allowed to "sell, publish, disclose or share" any of the data to any outside entity or use them to train artificial intelligence or other commercial uses.

Under the proposal, the company would also have to alert the city in writing within 24 hours of any data breach.

Dean Gialamas, the LAPD's chief information officer, said Flock sent the department suggested changes to the proposed contract on Monday.

A Flock spokesperson did not immediately respond to an inquiry from The Times.

Flock has said that it contracts with roughly 5,000 law enforcement agencies nationwide and that its technology complies with a California law that limits what information can be shared with federal authorities.

Addressing the Police Commission on Tuesday, LAPD Chief Jim McDonnell called Flock's plate reader technology a "valuable investigative tool," but one that must be handled "responsibly."

Beyond concerns about data storage and sharing, a recent report from LAPD Inspector General Matthew Barragan found that the department's license plate readers — known as ALPRs — have misidentified vehicles as stolen on a number of occasions.

Over a two-month period starting last August, Barragan's report said, Flock cameras scanned more than 210 million license plates. In 161 instances, according to the report, a plate that the system flagged as being stolen turned out to be wrong — although not every one of those cases led to a police intervention. The report found that 337 alerts did lead to the recovery of a stolen vehicle.

The report said the department lacks formal contracts or agreements with its two other plate reader vendors — Axon and Motorola — “to address ALPR data-security, privacy, and access-control requirements.”

Barragan's report said there were numerous “limitations” in the department's existing agreements with the three companies, including a lack of clear language around how long the data are retained and how they are shared with third parties or other law enforcement agencies.

Dozens of mostly smaller law enforcement agencies have severed their ties to Flock in recent months. News reports show that the San Francisco Police Department became the biggest department yet to suspend its relationship with the company after a routine audit found that a number of out-of-state and federal agencies had accessed its plate data, possibly in violation of state law.

Melina Abdullah, an academic and civic leader, speaks at the Los Angeles Board of Police Commissioners meeting on Tuesday, where she and others address concerns about police gangs, officer-involved shootings, a recent police shooting that killed a dog and the use of Flock cameras. (Jason Armond/Los Angeles Times)

In late May, L.A. City Councilmember [Ysabel Jurado](#) introduced [a motion asking](#) the Police Commission not to enter any further contracts with Flock or its affiliates.

In a statement following last week's decision by the LAPD to pause its relationship with Flock, Jurado called for "full accounting of who accessed this data, whether any outside agencies used LAPD-controlled systems, and how privately funded cameras have been connected to public law enforcement infrastructure."

During a news conference before Tuesday's meeting, several community groups that have opposed Flock's expansion in the city called for the department to end its relationship with the company outright.

Mau Trejo, director of strategic communications for Students Deserve, a group that advocates for Los Angeles schools to “defund the police and defend Black life,” urged L.A. follow the lead of other cities that have permanently ended their contracts with Flock.

“Our city prioritizes the use of surveillance as a means of safety, but that is not what’s happening in our schools in our streets,” he said.

Despite the resistance, the cameras have plenty of support from LAPD boosters, homeowner associations and elected officials who [have pressured the city](#) to speed up their installation.

The LAPD inspector general’s office said it will hold a virtual listening session to gather public feedback about the department’s use of license plate readers on the afternoon of July 30.

Times staff writer Dakota Smith contributed to this report.

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